

PART II.

SUITS AGAINST PUBLIC OFFICERS.

CHAPTER I.

THE PRINCIPLE OF LIABILITY IN TORT.

The first part of this study has dealt with the doctrine of non-suability of the state, and the extent to which it applies to the States of the United States. In the last chapter, has been set out the scope of the doctrine—what forms of action are suits against the state, and what proceedings, though affording judicial remedy against the state, are not within the prohibition. In this second part, will be considered suits against public officers, in relation to the immunity of the state from suit.

It was early settled in English law that, although the crown may not be sued for torts done by public officers, the actors themselves may be held liable, and that it is no defense to set up an unlawful authority from the crown. An act of parliament is, of course, always lawful authority. But where a statute may be held unconstitutional, as in the United States, it furnishes no better defense than the unlawful order of a higher executive officer.

The lack of valid defense in an unlawful authority from the crown has been rested upon the maxim that "the king can do no wrong." To authorize a wrong, it is said, is to do a wrong; hence, in the eye of the law, the alleged authority cannot exist. This maxim must mean one of two things. First, that whatever the king does is right; with the necessary corollary that whatever the king authorizes is right. Practically, this was, no doubt, for a time in large measure true; and the king's servants acting as judges made no pretense of exercising jurisdiction over the king's servants